

COUR PERMANENTE DE JUSTICE INTERNATIONALE

SERIE A/B

ARRÊTS, ORDONNANCES ET AVIS CONSULTATIFS

FASCICULE N° 59

AFFAIRE RELATIVE A L'ADMINISTRATION
DU PRINCE VON PLESS

ORDONNANCE DU 2 DÉCEMBRE 1933

XXX^{me} SESSION

1933

XXXth SESSION

ORDER OF DECEMBER 2nd, 1933

PERMANENT COURT OF INTERNATIONAL JUSTICE

SERIES A./B.

JUDGMENTS, ORDERS AND ADVISORY OPINIONS

FASCICULE No. 59

CASE CONCERNING THE ADMINISTRATION
OF THE PRINCE OF PLESS

LEYDE
SOCIÉTÉ D'ÉDITIONS
A. W. SIJTHOFF

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LEYDEN
A. W. SIJTHOFF'S
PUBLISHING COMPANY

PERMANENT COURT OF INTERNATIONAL JUSTICE

ORDER MADE ON DECEMBER 2nd, 1933.

1933.
December 2nd.
General List :
Nos. 49 and 55.

THIRTIETH (EXTRAORDINARY) SESSION.

December 2nd, 1933.

CASE CONCERNING THE ADMINISTRATION OF THE PRINCE VON PLESS.

Present : MM. ADATCI, *President* ; GUERRERO, *Vice-President* ;
KELLOGG, Baron ROLIN-JAEQUEMYS, Count ROST-
WOROWSKI, MM. FROMAGEOT, DE BUSTAMANTE, ANZI-
LOTTI, Sir CECIL HURST, MM. SCHÜCKING, NEGULESCO,
Jhr. VAN EYSINGA, M. WANG, *Judges*.

The Permanent Court of International Justice,
composed as above,
after deliberation,

Makes the following Order :

Having regard to Article 48 of the Statute of the Court ;
Having regard to Article 61 of the Rules of Court ;

Having regard to the Application of May 18th, 1932,
whereby the German Government brought before the Per-
manent Court of International Justice a suit against the
Polish Government, founded on an alleged violation by the
Polish Government of certain obligations incumbent upon
that Government under the Geneva Convention of May 15th,
1922, concerning Upper Silesia, in regard to the Administration
of the Prince von Pless, a Polish national belonging to the
German minority in Polish Upper Silesia ;

Having regard to the appointment by the German Govern-
ment of Professor Erich Kaufmann, of Berlin, as its Agent,
and to the appointment by the Polish Government of

M. Thadeus Sobolewski, Doctor of Law and Principal Counsellor at the State Litigation Office, as its Agent;

Having regard to the document filed with the Registry on October 8th, 1932, whereby the Polish Government, relying on Article 38 of the Rules, raised a preliminary objection to the German Government's Application, submitting that the Court should "declare the German Government's Application inadmissible";

Having regard to the Order of February 4th, 1933, whereby the Court, *inter alia*, joined the preliminary objection lodged by the Polish Government to the merits of the case and provisionally fixed the time-limits for the filing of the documents of the written proceedings on the merits, other than the Case of the applicant Party;

Having regard to the Order of May 11th, 1933, whereby the Court declared that a request for the indication of interim measures of protection filed by the German Government on May 2nd has ceased to have any object;

Having regard to the Order of July 4th, 1933, whereby the President—the Court not being in session—finally fixed the time-limits for the filing of the Counter-Case, Reply and Rejoinder on the merits, the time-limit for the filing of the Counter-Case expiring on December 29th, 1933;

Whereas, on October 27th, 1933, the Registrar of the Court received from the German Minister at The Hague a note to the effect that the German Government does not intend to proceed with the case concerning the Administration of the Prince von Pless which it had submitted to the Court;

Whereas, pursuant to the provisions of the Rules of Court, a copy of this communication was transmitted, for information and any necessary action, to the Agent of the Polish Government in the case;

Whereas, by a letter of November 15th, 1933, the said Agent informed the Court that, in view of the attitude on the part of the German Government indicated by this note, the Polish Government has no objection to the discontinuance of proceedings in this case and, as it accordingly considers them closed, "requests the Court officially to record the fact";

Whereas the withdrawal of the suit by the German Government and the acquiescence of the Polish Government in this withdrawal terminate the proceedings instituted;

THE COURT,

noting the communication received on October 27th, 1933, from the German Minister at The Hague, to the effect that the German Government withdraws the suit submitted by its Application of May 18th, 1932;

placing on record the declaration made on November 15th, 1933, by the Agent of the Polish Government to the effect that that Government acquiesces in this withdrawal;

declares that the proceedings begun by the Application of the German Government are terminated;

decides that the said case shall be removed from the Court's list.

Done in French and English, the French text being authoritative, at the Peace Palace, The Hague, this second day of December, one thousand nine hundred and thirty-three, in three copies, one of which shall be placed in the archives of the Court and the two others forwarded to the German Government and the Polish Government respectively.

(Signed) M. ADATCI,

President of the Court.

(Signed) Å. HAMMARSKJÖLD,

Registrar of the Court.